

Vexatious Litigant Order

2024-03-11

(ENDORSED)

FILED

MAR 11 2024

Clerk of the Court
Sharon O'Neil, Clerk of Santa Clara County

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA

KOSTIANYN MARS
Petitioner

vs.

HANNA MARS
Respondent.

Case No.: 22FL003144

ORDER

Introduction

Respondent Hanna Mars requests the Court designate Petitioner Kostianyn Mars as a vexatious litigant. Petitioner opposes Respondent's motion.

II. Vexatious Litigant

Respondent requests Petitioner be designated a vexatious litigant under Code of Civil Procedure section 391, subdivision (b)(3).

As an initial matter, it should be noted the moving papers are found in different places in the record. Respondent's Request for Order which included the request for designation of vexatious litigant was filed on September 26, 2023. The Court set this motion for hearing on January 11, 2024. The motion was ultimately continued to February 7, 2024. At that hearing, the Court heard arguments from the parties. The Court also invited further briefing on the issue and informed the parties the matter would be deemed submitted as of March 8, 2024. Petitioner filed a supplemental brief on February 23, 2024. Respondent filed two supplemental briefs – the first on February 16, 2024 and the second on March 1, 2024.

VL-100 2024-03-15

PREFILING ORDER-VEXATIOUS LITIGANT

(To be completed and filed if a party is seeking this order.)

FILED

MAR 15 2024

Clerk of the Court
Sharon O'Neil, Clerk of Santa Clara County

PREFILING ORDER-VEXATIOUS LITIGANT

(To be completed and filed if a party is seeking this order.)

FILED

MAR 15 2024

Clerk of the Court
Sharon O'Neil, Clerk of Santa Clara County

Introduction

Respondent Hanna Mars requests the Court designate Petitioner Kostianyn Mars as a vexatious litigant. Petitioner opposes Respondent's motion.

II. Vexatious Litigant

Respondent requests Petitioner be designated a vexatious litigant under Code of Civil Procedure section 391, subdivision (b)(3).

As an initial matter, it should be noted the moving papers are found in different places in the record. Respondent's Request for Order which included the request for designation of vexatious litigant was filed on September 26, 2023. The Court set this motion for hearing on January 11, 2024. The motion was ultimately continued to February 7, 2024. At that hearing, the Court heard arguments from the parties. The Court also invited further briefing on the issue and informed the parties the matter would be deemed submitted as of March 8, 2024. Petitioner filed a supplemental brief on February 23, 2024. Respondent filed two supplemental briefs – the first on February 16, 2024 and the second on March 1, 2024.

(ENDORSED)
FILED
MAR 11 2024
Clerk of the Court
Superior Court of CA County of Santa Clara
BY True Parker DEPUTY

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA

KOSTIANTYN MARS

Petitioner

vs.

HANNA MARS

Respondent.

Case No.: 22FL003144

ORDER

Introduction

Respondent Hanna Mars requests the Court designate Petitioner Kostiantyn Mars as a vexatious litigant. Petitioner opposes Respondent's motion.

II. Vexatious Litigant

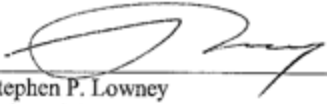
Respondent requests Petitioner be designated a vexatious litigant under Code of Civil Procedure section 391, subdivision (b)(3).

As an initial matter, it should be noted the moving papers are found in different places in the record. Respondent's Request for Order which included the request for designation of vexatious litigant was filed on September 26, 2023. The Court set this motion for hearing on January 11, 2024. The motion was ultimately continued to February 7, 2024. At that hearing, the Court heard arguments from the parties. The Court also invited further briefing on the issue and informed the parties the matter would be deemed submitted as of March 8, 2024. Petitioner filed a supplemental brief on February 23, 2024. Respondent filed two supplemental briefs – the first on February 16, 2024 and the second on March 1, 2024.

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

In sum, Respondent's motion to declare Petitioner a vexatious litigant is GRANTED. Petitioner is prohibited from filing any new litigation in the courts of this state in propria persona without first obtaining leave from the presiding judge of the court where the proposed litigation is to be filed. (See Code Civ. Proc., § 391.7, subd. (a).)

Dated: MAR 11 2024


Stephen P. Lowney
Judge of the Superior Court

ATTORNEY OR PARTY WITHOUT ATTORNEY: <i>(To be completed only if a party is making the motion)</i> NAME: FIRM NAME: STREET ADDRESS: CITY: TELEPHONE NO.: E-MAIL ADDRESS: ATTORNEY FOR (name):		STATE BAR NUMBER: STATE: ZIP CODE: FAX NO.:	FOR COURT USE ONLY FILED MAR 15 2024 Clerk of the Court SUPERIOR COURT OF CA COUNTY OF SANTA CLARA BY <u>True Parker</u> DEPUTY
☐ COURT OF APPEAL, APPELLATE DISTRICT, DIVISION ☒ SUPERIOR COURT OF CALIFORNIA, COUNTY OF Santa Clara STREET ADDRESS: 201 North First Street MAILING ADDRESS: CITY AND ZIP CODE: San Jose 95113 BRANCH NAME: Family Justice Center Courthouse			
CASE NAME: Kostiantyn Mars vs Hanna Mars			
PREFILING ORDER—VEXATIOUS LITIGANT		CASE NUMBER: 22FL003144	

- Name and address of each plaintiff or cross-complainant or other party subject to this prefiling order:
 Kostiantyn Mars
 P.O. Box 8081
 San Jose, CA 95155
- This prefiling order is entered pursuant to a motion made by ☐ the court ☒ party (name): Hanna Mars
- The person or persons identified in item 1, unless represented by an attorney, are prohibited from filing any new litigation in the courts of California without approval of the presiding justice or presiding judge of the court in which the action is to be filed.
- The clerk is ordered to provide a copy of this order to the Judicial Council of California by fax at 415-865-4329 or by mail at the address below.

Vexatious Litigant Prefiling Orders
 Judicial Council of California
 455 Golden Gate Avenue
 San Francisco, California 94102-3688

Date: 3/15/24


 JUDICIAL OFFICER
JUDGE STEPHEN P. LOWNEY